

25NWCV01522 25NWCV01522

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RYAN SEDA vs LOUIS LUHUEI WU

CASE NO.: 25NWCV01522

HEARING: September 17, 2026 @ 9:30

a.m.

#7

TENTATIVE ORDER

Plaintiff Ryan Seda's Motion

for Order Substituting Jerry Chiatzeng Wu, as Personal Representative of the Estate of Louis Luhuei Wu, as Defendant in Place of Decedent Louis Luhuei Wu is DENIED.

Plaintiff to give notice.

Background

This is a tenants' rights action regarding residential property located at 18331 Clarkdale Ave., Artesia, California 90701. On April 28, 2025, Plaintiff Ryan Seda ("Plaintiff") filed this action against Defendant Louis Luhuei Wu ("Defendant") and Does 1 to 20.

Plaintiff now moves to substitute

Jerry Chiatzeng Wu, Personal Representative of the Estate of Louis Luhuei Wu, as the Defendant in this action in place of deceased Defendant pursuant to Code

of Civil Procedure section 377.41.

Jerry Chiatzeng Wu, Personal

Representative of the Estate of Louis Luhuei Wu, (hereinafter, "Personal Representative Wu") specially-appearing, opposes the Motion. No reply has been filed as of September 16, 2026.

Legal Standard

Code of Civil Procedure section

377.41 provides that "[o]n motion, the court shall allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent's personal representative, or to the extent provided by statute, against the decedent's successor in interest, except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made." (Code Civ. Proc., § 377.41.)

Discussion

Plaintiff explains that unbeknownst

to Plaintiff at the time of filing, Defendant died on October 15, 2023, over a year before this action was filed. No personal representative had yet been appointed for his estate at the time the action was filed. Plaintiff's counsel learned that Decedent's son, Jerry Chiatzeng Wu, filed a petition for probate and was later appointed as Defendant's personal representative on July 1, 2026. (Kohanim Decl., ¶ 5.)

Plaintiff argues that he properly

followed the Probate Code creditor-claim filing procedure, and thus, this substitution should be allowed under Code of Civil Procedure section 377.41. On February 23, 2026, Plaintiff timely filed a Creditor's Claim (Judicial Council Form DE-172) in the probate proceeding. (Kohanim Decl., ¶ 6, Exh. A.) On July 13, 2026, Plaintiff received notice that Jerry Chiatzeng Wu rejected the creditor claim in full. (Kohanim Decl., ¶ 7, Exh. 2.) The Allowance or Rejection of Creditor's Claim (Judicial Council Form DE-174) was executed July 6, 2026 and served on Plaintiff by mail that same date. (Ibid.) Plaintiff filed this Motion within 90 days from the July 6, 2026 notice of rejection. (Kohanim Decl., ¶ 8.)

Plaintiff thus argues that this substitution is timely. Specifically, the one-year limitations period of Code of Civil Procedure section 366.2 was tolled from the date he filed the creditor's claim (February 23, 2026) to the date the claim was rejected (July 6, 2026) pursuant to Probate Code section 9352, subdivision (a) and the reasoning of *Estate of Holdaway* ("Holdaway") (2019) 40 Cal.App.5th 1049. Under Probate Code section 9353, Plaintiff was afforded 90 days after the notice of claim rejection (October 4, 2026) to commence or continue the action on the claim.

In opposition, Personal Representative Wu argues that Code of Civil Procedure section 377.41 does not authorize his substitution for Defendant where Defendant died before the action was commenced. Personal Representative argues that the statutory language applies when an action "pending" against a defendant thereafter dies, and plaintiff seeks to substitute in defendant's personal representative. The related Probate Code section involving requirements for a filing a claim to continue an action requires that an action be "pending against the decedent at the time of death." (See Prob. Code, § 9370, subd. (a).)

Personal Representative Wu further asserts that Plaintiff conflates issues of whether the credit-claim procedure affects limitations period tolling with whether substitution is allowed in this particular action via Code of Civil Procedure section 377.41. The *Holdaway* case did not discuss section 377.41—rather, the case addressed the tolling effect of the creditor claim procedure.

No reply has been filed.

The Court agrees with Personal Representative Wu. Pursuant to the plain language of Code of Civil Procedure section 377.41, a personal representative may be substituted for a deceased defendant in a "pending action." There is no pending action if the defendant is deceased before the action is filed. (See e.g., *Walter v. National Indem. Co.* (1970) 3 Cal.App.3d 630, 634

["[I]f the plaintiff or defendant was dead before the action was begun, the judgment is void and subject to collateral attack, because he [n]ever was a party, i.e., the court never acquired

jurisdiction of the person. [Citation.]"]; Woolley v. Seijo (1964) 224 Cal.App.2d 615, 620–621 ["It is settled that a judgment for or against a dead person is void only if the plaintiff or defendant was dead before the action was begun. (Citation.) It is equally well settled that where a party dies subsequent to the commencement of the action and after the court has acquired personal jurisdiction over him, the entry of judgment against him is a 'mere irregularity' which renders the judgment voidable only and therefore immune from collateral attack."].) In other words, section 377.41 presupposes that a valid action was pending—i.e., it was commenced against a living defendant who subsequently died during the litigation.

The Court further agrees that the Holdaway case is inapplicable here. The case examined whether the timely filing of a creditor claim tolled the Code of Civil Procedure section 366.2 statute of limitations (for actions against a decedent) until it is acted on by the personal representative. (Holdaway, *supra*, 40 Cal.App.5th at p. 1051.) On the facts of that case, the Court of Appeal found that the creditor's timely-filed claim tolled the statute of limitations until the personal representative rejected the claim pursuant to tolling provisions in Probate Code section 9352, and the personal representative's demurrer the action should not have been sustained based on untimeliness. (*Ibid.*) Thus, the Holdaway case did not discuss Code of Civil Procedure section 377.41 or whether the personal representative of a defendant that died prior to the filing of an action could be substituted in for that defendant.

The Court does not opine on 1) the proper course of action Plaintiff was required to take where the Defendant died prior to the filing of this action or 2) whether this action was timely filed. The bottom line is that Code of Civil Procedure section 377.41 is not the proper procedure in this scenario.

Accordingly, Plaintiff's Motion for Order Substituting Jerry Chiatzeng Wu, as Personal Representative of the Estate of Louis Luhuei Wu, as Defendant in Place of Decedent Louis Luhuei Wu is denied.